

(3) The consumer party was required to accept the arbitration provision in the contract.

(Ethics Standards for Neutral Arbitrators in Contractual Arbitration, section 2(d).)

A consumer party includes “[a]n individual who seeks or acquires, including by lease, any goods or services primarily for personal, family, or household purposes including, but not limited to, financial services, insurance, and other goods and services as defined in section 1761 of the Civil Code”. (Ethics Standards for Neutral Arbitrators in Contractual Arbitration, section 2(e)(1).) Civil Code section 1761 defines “Consumer” as “an individual who seeks or acquires, by purchase or lease, any goods or services for personal, family, or household purposes.” (Civ. Code § 1761(d).)

Here, the contract shows that Plaintiff hired Defendant to perform repairs on his property. In his opposition, Plaintiff states that the property is his home. Further, the address listed on Plaintiff’s opposition papers is the same as the address where the parties contracted for repair work. Finally, in the Work Authorization, it provides information about the Contractors’ State License Board, which is the state consumer protection agency.

In reply, Defendant provided documents from another case involving Defendant’s standard contract where JAMS determined it was not a consumer arbitration. That decision is not binding on this Court. Further, the trial court’s decision in this case did not address the fee shifting clause at issue here.

The Court finds that the contract is a consumer one because Plaintiff hired Defendant to provide services for household purposes. The Court finds that Plaintiff is a consumer under Civil Code section 1761 and the Ethics Standards for Neutral Arbitrators in Contractual Arbitration. Therefore, as a consumer in the arbitration context Code Civil Procedure section 1284.3 applies and the fee shifting clause is unconscionable.

The next issue is whether the Court should sever this one clause or refuse to enforce the entire arbitration agreement. “In deciding whether to sever terms rather than to preclude enforcement of the provision altogether, the overarching inquiry is whether the interests of justice would be furthered by severance; the strong preference is to sever unless the agreement is ‘permeated’ by unconscionability.” (Hasty v. American Automobile Assn. etc. (2023) 98 Cal.App.5th 1041, 1064 (internal quotation marks omitted).)

There is only one unconscionable clause here and the Court finds that the interests of justice would be furthered by severance of the fee shifting clause. The Court strikes the following from the parties’ contract: “The prevailing party in any arbitration or legal proceedings relating to this Agreement shall be entitled to payment of reasonable attorney’s fees, costs and expenses inclusive of all of the expenses incurred with JAMS/Endispute.”

Having stricken the fee shifting clause from the contract, the Court finds that the arbitration clause is enforceable and the Court orders the parties to arbitration.

Plaintiff’s request for judicial notice are denied as copies of the documents are not attached to the request. Further, some of the requests do not appear appropriate for judicial notice.

17. 9:00 AM CASE NUMBER: N25-1974
CASE NAME: CEDRIC MOORE VS. DAVID LIVINGSTON
PETITION FOR WRIT OF MANDATE AND COMPLAINT

FILED BY: LIVINGSTON, DAVID O.

TENTATIVE RULING:

Petitioner, Cedric B. Moore, filed this writ action against respondent, Sherriff of the County of Contra Costa, to compel respondent to process his application for a permit to carry a concealed weapon ("CCW permit") according to "the standards and requirements of Penal Code §§26150 and 26202." Respondent has filed both an opposition to the writ and a demurrer

The demurrer is **overruled** and the writ is **granted**. Petitioner shall submit a proposed order after providing it to the Sheriff for approval as to form.

I. Factual Background

Petitioner first submitted a paper application for a CCW permit in 2023, but the application was not processed that year. Instead, in 2024, after petitioner's submission, he was asked to re-submit the application electronically based on the new system used by the sheriff. The electronic application was entered online using California Department of Justice forms. Those forms cited the new 2024 statutory scheme that took effect under SB 2. (Declaration of Steven Valkanoff in Support of Demurrer, hereinafter "Valkanoff Decl.," Exhibit B.)

On his application, questions 5-6, petitioner provided minimal answers to questions relating to his criminal history, failing to strictly comply with the application's "important instructions" to complete the form "as directed." (Valkanoff Decl., p. 3.)

Question five asked, "Have you ever been detained or arrested in the Unites States or any other country? If yes, please explain including the date, agency, and whether the detention or arrest resulted in criminal charges, and if so, the disposition." While petitioner checked the "yes" box, he simply followed up by stating, "30 YEARS AGO." (Valkanoff Decl., p. 5.)

Question six asked, "Are you now, or have you been, on probation, parole, post release community supervision, or mandatory supervision from any state for conviction of any offense including traffic? If yes, please explain." Petitioner again checked the "yes" box, but again only explained by noting, "30 YEARS AGO." (Valkanoff Decl., p. 5.)

Question 20 asked: "Have you withheld any fact that might affect the decision to approve this license. If yes, please explain." Petitioner checked the "no" box. (Valkanoff Decl., p. 8.)

In November of 2024, respondent denied the application for "[F]ailure to provide full details on the following: An arrest for battery on peace officer/fire fighter (PC 240) as well as threatening public employee (PC 71). In 1982 convicted for PC 242 and sentenced to 10 days in jail and years probation. In 1986, arrested for CVC 10851. In 1993, arrested for PC 69, PC 148 and PC 422 which applicant later plead guilty to the PC 148 resulting in sentencing of jail and probation. Applicant has had multiple state tax liens."

On December 19, 2024, the Sheriff sent petitioner an email stating: "Your license to carry a concealed firearm pursuant to Penal Code sections 26150, 26155, or 26170 is denied based on a determination that you (the applicant) are a disqualified person for such a license, as set forth in Penal Code section 26202." (Valkanoff Decl., Ex. C.) On December 23, 2024, petitioner sent a letter to the Sheriff appealing the decision and asking the Sheriff to reconsider the denial, but the Sheriff did

not respond.

When counsel for petitioner became involved, the Sheriff initially took the position that the 2023 statutory scheme applied. (See Declaration of George M. Lee in Support of Writ, filed April 1, 2026, Ex. A.) Later, the Sheriff asserted that petitioner should reapply to the Brentwood Police Department. (*Id.*, ¶4, Ex. B.) The final position asserted by the Sheriff, advanced in the papers filed with the Court, is that the permit would need to be immediately revoked, if issued, based on incomplete answers provided by petitioner on his application. (*Id.*, ¶15, Ex. C.)

To date, no in-person interview has occurred, no character references have been contacted on petitioner's behalf, and other investigatory steps petitioner contends should have occurred have not occurred. (Declaration of Cedric B. Moore in Support of Writ, filed April 1, 2026, ¶14.) Petitioner states he was not given any opportunity to respond to or address the concerns cited in the denial, as he had expected. (*Ibid.*) Petitioner otherwise meets all eligibility requirements for a CCW permit. (*Id.* at ¶21.)

II. Procedural Background

On September 30, 2025 petitioner filed this action for writ of mandate in this Court. Petitioner alleges three causes of action: one for writ of mandate, one for declaratory relief, and one for injunctive relief. He seeks to compel the Sheriff to process his application according to "the standards and requirements of Penal Code §§26150 and 26202." A hearing on the merits was initially scheduled for July 9, 2026. Prior to that date, instead of filing an opposition to the writ, respondent filed a demurrer which was set for hearing in November. Both hearings were then re-set and are both now before the Court. Further briefing was permitted, but not required. The respondent provided an opposition memorandum to the writ, along with evidence, to which petitioner filed a "Second Reply Memorandum."

Because the arguments advanced in both the writ opposition papers and the demurrer moving papers are essentially the same, the Court discusses the arguments together herein.

III. Legal Background

The version of Penal Code section 26150, subdivision (a) that was in effect in 2023 provided that a sheriff "may issue" a CCW permit "upon proof of all of the following: [¶] (1) The applicant is of good moral character. [¶] (2) Good cause exists for issuance of the license. [¶] (3) The applicant is a resident of the county or a city within the county, or the applicant's principal place of employment or business is in the county or a city within the county and the applicant spends a substantial period of time in that place of employment or business. [¶] (4) The applicant has completed a course of training as described in Section 26165."

In 2022, however, the Supreme Court decided *New York State Rifle & Pistol Ass'n, Inc. v. Bruen* (2022) 597 U.S. 1 ("*Bruen*"), holding that a New York CCW licensing statute that required CCW license applicants to show a "proper cause" was unconstitutional under the Second Amendment.

The California Legislature, in response to *Bruen*, enacted California Senate Bill 2 ("SB 2"), to take effect in January of 2024, with the goals of establishing a more uniform and effective licensing process throughout California and addressing the implications of *Bruen*. (See *Cal. Rifle & Pistol Ass'n v. L.A. Cnty. Sheriff's Dep't* (C.D.Cal. 2024) 745 F. Supp. 3d 1037, 1045.) SB 2 replaced California's "good cause" requirement with a requirement that the licensing authority, before issuing a license or renewing a license, determine that the applicant is not a "disqualified" individual based on an

assessment of defined criteria. (*Ibid.*) SB 2 removes the "good moral character" and "good cause" requirements and replaces the "may issue" language with "shall issue."

The amended section 26150 subdivision (a), in effect in 2024, provided: "When a person applies for a new license or license renewal to carry a pistol, revolver, or other firearm capable of being concealed upon the person, the sheriff of a county *shall issue* or renew a license to that person *upon proof*" that the "*applicant is not a disqualified person* to receive such a license, as determined in accordance with the standards set forth in Section 26202," among other items not at issue here. (Emphasis added.)

In turn, a new statute, Section 26202, established standards for who is a "disqualified person" under its subdivision (a). An applicant was a disqualified person if he/she met certain criteria, which included being a danger to self, others, or the community, being subject to certain court actions within the previous five to ten years, or being incarcerated for certain offenses within the previous five to ten years, etc. (Pen. Code, § 26202, subd. (a).)

Subdivision (b) of that statute provides for certain procedures that a licensing authority must follow in determining whether an applicant is a disqualified person. Specifically, the licensing authority "shall conduct an investigation that meets all of the following minimum requirements: (1) An in-person interview with the applicant. [...]"

Additional "investigative efforts" are permitted, though they are not required. (Pen. Code, § 26202, subd. (c).)

SB 2 also required a licensing authority to revoke a licensee's CCW permit for failure to provide complete and accurate information in the CCW permit application. In 2024, Penal Code, § 26195 (b)(1) provided that a license "shall be revoked by the local licensing authority if at any time [...] the local licensing authority determines [...] (C) Any information provided by a licensee in connection with an application for a new license or a license renewal is inaccurate or incomplete."

Consistent with this, the Legislature further amended Penal Code section 26195 through AB 1078, effective in January 2026, explicitly prohibiting a licensing authority from issuing a CCW permit in the first place, as a result of an applicant's provision of incomplete or inaccurate information.

In relevant part, Penal Code, § 26195, subdivision (a) currently states:

A license under this chapter shall not be issued by the local licensing authority if any of the following occurs:

[...]

(2) The applicant knowingly provides any inaccurate or incomplete information in connection with an application for a license [...].

Subdivision (b) of that statute states, in relevant part:

(1) A license under this chapter shall be revoked by the local licensing authority if at any time the local licensing authority determines any of the following:

[...]

(B)The licensee knowingly provided any inaccurate or incomplete information in connection with an application for a license [...]

Accordingly, under the current version of 26195, and arguably under 26195 as it existed in 2024, an applicant that provides incomplete or inaccurate information would not be entitled to issuance of a CCW permit if the provision of “inaccurate or incomplete” information was done “knowingly.”

IV. Requests for Judicial Notice

In support of the petition, petitioner requests judicial notice of: (A) Former Cal. Penal Code § 26205, effective 1/1/24, pursuant to Sen. Bill 2, through 12/31/25; (B) Assembly Bill 1078, Stats. 2025, ch. 570 (eff. Jan. 1, 2026); and (C) California Department of Justice, Bureau of Firearms, Form BOF 4012 –Standard Initial and Renewal Application for License to Carry a Weapon Capable of Being Concealed. The unopposed request is **granted**.

Respondent requests judicial notice in support of his opposition, of the legislative analysis of AB 1078, which reflects the Legislature’s view that the amendment would simply “clarify” existing law, and that a licensing authority “shall not” issue a concealed carry license if inaccurate or incomplete information was provided in connection with an application. The unopposed request is **granted**. (Evid. Code, § 452 (c) [permitting notice of official acts of the legislative, executive, and judicial departments of any state of the United States.”].)

Notwithstanding the granting of these requests, the Court notes that the weight of the legislative history documents, including those presented by both sides here, is negligible. The Second District Court of Appeal has stated:

[J]udicial use of legislative history has come under formidable criticisms, including that “[l]egislative history has become contaminated by documents which are more aimed at influencing the judiciary after the bill is passed than explaining to the rest of the legislature what the bill is about before it is passed.” (*J. A. Jones Construction Co. v. Superior Court* (1994) 27 Cal.App.4th 1568, 1577; see Eskridge, *The New Textualism* (1990) 37 UCLA L.Rev. 621, 643–644 [describing recurring skepticism about “the reliability of traditional linchpins of statutory interpretation, such as committee reports and sponsor’s statements,” as “specific explanations in those sources may well be strategic, rather than sincere, expressions of the statute’s meaning”].) More fundamentally, critics have observed that “the idea that the diverse membership of a democratically elected legislature can ever have one collective ‘intent’ on anything is a myth; if there is ambiguity it is because the legislature either could not agree on clearer language or because it made the deliberate choice to be ambiguous—in effect, the only ‘intent’ is to pass the matter on to the courts.” (*J.A. Jones*, at p. 1577.)

(*Los Angeles Unified School Dist. v. Superior Court* (2021) 64 Cal.App.5th 549, 559, fn. 4.)

V. Standard of Review

A writ of mandate may be issued to a public agency “to compel the admission of a party to

the use and enjoyment of a right or office to which he is entitled" (Code Civ. Proc., § 1085.) Traditional mandamus lies to correct abuses of discretion, and will lie to force a particular action by the agency when the law clearly establishes the petitioner's right to such action. (*Sequoia Union High School Dist. v. Aurora Charter High School* (2003) 112 Cal.App.4th 185, 195, quoting *Miller Family Home, Inc. v. Department of Social Services* (1997) 57 Cal.App.4th 488, 491.)

Generally, mandamus may be used only to compel the performance of a duty that is purely ministerial in character. (*Ridgecrest Charter School v. Sierra Sands Unified School Dist.* (2005) 130 Cal.App.4th 986, 1002, citations omitted.) The remedy may not be invoked to control an exercise of discretion, i.e., to compel an official to exercise discretion in a particular way. (*Ibid.*) "A ministerial act has been described as 'an act that a public officer is required to perform in a prescribed manner in obedience to the mandate of legal authority and without regard to his [or her] own judgment or opinion concerning such act's propriety or impropriety, when a given set of facts exists.' [Citation.] On the other hand, discretion is the power conferred on public functionaries to act officially according to the dictates of their own judgment." (*Id.* at 1002-1003, citations omitted.)

Courts exercise limited review in ordinary mandamus proceedings. (*Sequoia Union High School Dist., supra*, 112 Cal.App.4th at 195, quoting *Miller Family Home, Inc., supra*, 57 Cal.App.4th at 491.) They may not reweigh the evidence or substitute their judgment for that of the agency. (*Ibid.*) They uphold an agency action unless it is arbitrary, capricious, lacking in evidentiary support, or was made without due regard for the petitioner's rights. (*Ibid.*) However, courts must ensure that an agency has adequately considered all relevant factors, and has demonstrated a rational connection between those factors, the choice made, and the purposes of the enabling statute. (*Ibid.*)

VI. Discussion

A. Positions of the Parties

Petitioner, who represents he is a law-abiding resident, responsible firearm owner, business owner, and community leader, argues that the Sheriff erred because he failed to comply with a mandatory duty under SB 2 to process the application in accordance with the new statutory scheme. Petitioner emphasizes the mandatory language in Penal Code section 26150, which requires issuance of a permit to persons that are not "disqualified." Despite the Sheriff's initial communication about the denial in December 2024, it is undisputed that petitioner would not be disqualified under Penal Code, section 26202. (Opposition to Petition for Writ of Mandate, filed July 30, 2026, at 5:25-28.)

Respondent, despite initially denying the application on the basis that petitioner was disqualified under 26202, argues that he had the authority to reject the application based on Penal Code section 26195, which, according to respondent, allows (and in 2024 allowed) non-issuance of a permit where an applicant (seemingly including non-disqualified persons) provides incomplete or inaccurate information in connection with a CCW application. The Sheriff highlights the instructions which require answers to be provided "as directed." (See Valkanoff Decl., Ex. B, p. 3 ["Important Instructions"].) The Sheriff argues that he had "no duty to grant [petitioner] a CCW permit." (Opposition to Petition for Writ of Mandate, filed July 30, 2026, at 3:2.)

Petitioner argues that the Sheriff's determination he had "provided incomplete information" would undermine the holding of *Bruen*, which found subjective measures of eligibility unconstitutional.

B. Whether the Information is Inaccurate or Incomplete

The DOJ form that petitioner completed to initiate his application process includes questions that seek more information than that which can be considered as part of the “disqualified person” determination. Parties do not discuss this inquiry, however. Such an inquiry is beyond the scope of what this Court is asked to consider here.

Respondent argues the omitted information should be deemed “knowing” as a matter of law because petitioner’s omissions “cannot reasonably be attributed to a lapse in memory.” (Respondent’s Memorandum of Points and Authorities in Support of Demurrer, filed June 24, 2026, at 9:24-27.)

But the Court need not even decide the answers were “inaccurate or incomplete” as a matter of law. Assuming they were, and assuming the Sheriff could revoke the license or decline to issue one at all, petitioner was nonetheless entitled to an “in-person” interview, at which the Sheriff would presumably be able to determine whether the omission was “knowing” or not, as discussed below.

C. Section 26202 Requirements Were Ignored

The rules governing statutory construction are well settled. (See, e.g., *Cummins, Inc. v. Superior Court* (2005) 36 Cal.4th 478, 487; *Ste. Marie v. Riverside County Regional Park & Open-Space Dist.* (2009) 46 Cal.4th 282, 288; *Burden v. Snowden* (1992) 2 Cal.4th 556, 562.) In construing a statute, our task is to ascertain the intent of the Legislature so as to effectuate the purpose of the enactment. (*Ibid.*) In determining intent, we look first to the language of the statute, giving effect to its plain meaning. (*Ibid.*) Although we may properly rely on extrinsic aids, we should first turn to the words of the statute, which are the most reliable indications of the Legislature’s intent. (*Ibid.*) We construe the words of a statute in context, and harmonize the various parts of an enactment by considering the provision at issue in the context of the statutory framework as a whole. (*Ibid.*)

Because 26150 requires the granting of a permit where the applicant is not “disqualified,” and in light of the later-passed AB 1078, which requires the Sheriff *not to issue* a permit in cases of an applicant “knowingly” providing incomplete information, the Sheriff argues that the plain language construction of 26150 would lead to “absurd results.” (Respondent’s Memorandum of Points and Authorities in Support of Demurrer, filed June 24, 2026, at 8:19-10:1.) This relies on the premise that the petitioner would be granted a permit, despite having failed to report certain information requested in the application. Even at the time in question (2024), the statutes required immediate revocation of a permit where the Sheriff learned of an applicant’s “knowing” provision of such information.

The problem with this argument is that it assumes the “knowingly” finding without the interview wherein an applicant must be allowed the opportunity to explain. Notable, nowhere in the statutory scheme is an applicant *required* to report the breadth of information requested in questions five and six of the application form. Whether these questions are nonetheless permitted to be on the form, this Court does not seek to decide.

The plain language of the section 26202 limits a disqualification determination to certain criminal history inquiries in the past five or ten years. This suggests the Legislature did not intend to make information that *was* disclosed (albeit incompletely) capable of disqualifying an applicant. Only under the sort of subjective “good cause” scheme that *Bruen* found unconstitutional would this sort of information be material, if the Sheriff decided to consider it so.

The plain language of Penal Code section 26202 does not allow the denial of an in-person

interview, which is required specifically as part of “determining whether an applicant is disqualified.” Such interview would provide the opportunity for applicants to explain the answers given. Accordingly, even in an application that has what might be considered flaws, the interview requirement and other procedural steps, are explicit and mandatory in making the determination:

In determining whether an applicant is a disqualified person and cannot receive [a CCW permit], the licensing authority *shall* conduct an investigation that meets all of the following minimum requirements:

(1) For a license issued pursuant to subdivision (b) of Section 26150 or subdivision (b) of Section 26155, an in-person interview of the applicant or a virtual interview of the applicant, where the applicant appears by video and audio, at the applicant’s election [...]

(2) In-person, virtual, or telephonic interviews with at least three character references

[...]

(Pen. Code, § 26202 (b), emphasis added.)

While subdivision (c) allows a licensing authority to engage in “investigative efforts in addition to those listed in subdivision (b),” the subdivision (b) efforts are the minimum, and not optional.

Here, the DOJ Application filled out by petitioner explicitly contains, on page three, the following text:

Prior to issuing a CCW license, the licensing authority is required to [...] conduct an investigation to determine whether the applicant is a disqualified person and cannot receive or renew a CCW license. *That investigation must, at a minimum, include a review of all information provided in this application, an in-person interview with the applicant, interviews with at least three character references, a review of publicly available information about the applicant, a review of information provided by the Department of Justice, and a review of information in the California Restraining and Protective Order System.*

(Valkanoff Decl., Ex. B, emphasis added.)

Petitioner indicates that, at the time of completing the application, he believed he would have the opportunity to elaborate on his answers during the in-person interview. Petitioner “well understood that he was dealing with a law enforcement agency, with full access to Mr. Moore’s criminal history. To suggest otherwise—believing that a Sheriff’s Office wouldn’t perform a full background check, criminal history, arrest and contact data, and the like—would be defying reality.” (Petitioner’s Reply, filed June 25, 2026, 6:18-21.)

The instructions on the DOJ form application further represent that such opportunity would be provided. The form instructions indicate that the interview is required, independent of the applicant’s answers. The section entitled “Important Instructions” requires the applicant to “[r]eview your answers before your in-person interview with the licensing authority investigator and *be prepared to clarify* the information provided upon request.” (Valkanoff Decl., Ex. B, p. 3, emphasis added.)

While the Sheriff contends that he would have had to deny or “immediately revoke” the CCW permit under Penal Code, § 26195 if a permit were issued, this is not apparent from the facts in this record. The revocation *would* be required if the petitioner had “knowingly” provided “inaccurate or incomplete information” in connection with his application. (Pen. Code, § 26195 (b)(1)(B).)

To the extent 26195 contains a mandatory requirement that the Sheriff deny the permit, this is reconcilable with the requirement that the Sheriff also comply with the § 26202 (b) procedural requirements for determining who is a “disqualified person.” These two statutes containing mandatory duties of the Sheriff can reasonably be reconciled if the Sheriff is required to consider whatever additional information would be elicited during the required interview in making the “knowingly” determination.

Petitioner does not seek mandate to compel the issuance of a permit, a result that might be characterized as “absurd” if the Sheriff immediately *had* to revoke it. (See Memorandum of Points and Authorities in Support of Demurrer, filed June 24, 2026, at 9:1-10.) Instead, petitioner seeks to have his application processed under the requirements mandated by statute.

While the Sheriff may have discretion to deny the application *after* the requirements in 26202 (b) are met, there is no statutory exception to undertaking these requirements. The Sheriff’s failure to follow these statutory procedures in making the disqualified person determination was arbitrary, capricious, and lacking in evidentiary support because the Sheriff did not adequately consider all relevant factors (such as the opportunity of an in-person interview wherein petitioner could explain his application responses further).

In making this determination, the Court is not reweighing evidence, just requiring the correct procedures to be followed.

D. No Alternative Remedy

The Sheriff argues petitioner has an alternative remedy, to apply for the CCW permit in Brentwood, where he currently resides. Petitioner argues the remedy is inadequate because his denial by respondent would adversely affect his ability to be granted a CCW permit by Brentwood. Sheriff fails to refute this argument. It is plausible that denial by one licensing authority could be used as a reason for denial by the other. The Court finds this is not an adequate remedy.

18. 9:00 AM CASE NUMBER: N26-0887

CASE NAME: PETITION OF:MARY MCNEILL

HEARING IN RE: PETITION FOR RELEASE OF LIEN

FILED BY:

TENTATIVE RULING:

Petitioners Mary McNeill and Jonathan Cotham seeks to cancel mechanic’s liens. The liens were recorded May 20, 2025 and June 2, 2025. Civil Code § 8460 requires action to enforce within 90 days. There has been no extension of credit or action to enforce, and more than 90 days have passed. Petitioner gave notice to the lienholder and received a response that the lienholder would respond, but also that the lien was being released. There appears to be no opposition. The Petition is Granted.